

Hard Act to FOLLOW

As school education becomes a Fundamental Right, the Centre and states need to act with speed to prevent an enlightened law from being an exercise in blah

| By Kaveree Bamzai |

Prime Minister Manmohan Singh spoke movingly of how it would empower the individual and enable the nation. Union Human Resource Development Minister Kapil Sibal, deploying typical hyperbole, called it a tryst with destiny. No one can argue though that the Right of Children to Free and Compulsory Education (RTE) Act, which came into effect on April 1, is a standard-setting law that pushes forward the UPA Government's new generation social revolution. By making education for children between six and 14 in neighbourhood schools a fundamental right, it has made it incumbent for governments to fulfill their basic responsibility. It has set norms for schools, for teachers, and for curriculum. It has led to the specification of the expense and the formula for sharing it with states, showing up as undemocratic the governments that oppose it. It has also placed moral pressure on those who have—the private schools—to share with those who don't.

An enlightened Act that demands an enlightened society, yes. An Act that delights in reiterating the obvious

about enforcing quality and ensuring safeguards. Yes. It is also an Act that may well remain in the realm of evolved thinking if the state Governments don't realise it is in their political interest to implement it. Within the next six months, the 28 state legislatures have to endorse the model rules of the Act, with modifications and alterations wherever necessary. The National Advisory Council and state advisory councils will have to be formed. Teacher vacancies will have to be filled to meet the 1:30 ratio specified in the Act. A database of all recognised schools in the country will have to be prepared, and the age of entry to schools will need to be standardised across states. There are transitory issues as well: what sort of training will the states provide to the 80 lakh out-of-school children so that they can be absorbed into schools? What will happen to the NGOs that are working under the Sarva Shiksha Abhiyan (SSA)?

It marks the culmination of a process that began under the NDA government with the 86th amendment to Article 21(A) of the Constitution. In

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